

24TRCV03220 24TRCV03220

County: los-angeles

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Case Number: 24TRCV03220 Hearing Date: July 13, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JULIE KESSLER

,

Plaintiff,

vs.

THE VONS COMPANIES, INC.

;

Defendant.

Case

No.:

24TRCV03220

Hearing

Date:

July
13, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

THE VONS COMPANIES, INC.'S MOTION TO VACATE AND SET ASIDE MAY 18, 2026, ORDER
GRANTING PLAINTIFF JULIE KESSLER'S MOTION FOR EVIDENTIARY SANCTIONS AND
ADVERSE JURY INSTRUCTION

(2)

PLAINTIFF

JULIE KESSLER'S REQUEST FOR AN EXPEDITED BRIEFING SCHEDULE

MOVING PARTY: Defendant, the Vons Companies,
Inc.

RESPONDING

PARTY: Plaintiff, Julie Kessler

(1)

Defendant

the Vons Companies, Inc.'s Motion to Vacate and Set Aside May 18, 2026, Order
Granting Plaintiff Julie Kessler's Motion for Evidentiary Sanctions and Adverse
Jury Instruction is GRANTED pursuant to Code of Civil Procedure section 473,
subdivision (d).

(2)

Plaintiff

Julie Kessler's Request for an Expedited Briefing Schedule is GRANTED IN PART.

The Court considers the moving
papers filed on June 2, 2026, the conditional non-opposition filed on July 1,

2026, and the reply brief filed on July 6, 2026.

BACKGROUND

Factual Background

On September 25, 2024, plaintiff

Julie Kessler ("Plaintiff") filed the Complaint against defendants the Vons Companies, Inc. ("Defendant") and DOES 1 through 50. The Complaint includes the following causes of action: (1) General Negligence and (2) Premises Liability.

On May 18, 2026, the Court

partially granted Plaintiff's Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction Against Defendant the Vons Companies, Inc. for the Destruction of Video Surveillance Evidence. (Declaration of Kori N. Macksoud ("Macksoud Decl."), Exh. B.) The Court imposed the following sanctions: (1) "Defendant is hereby prohibited from presenting any evidence or making arguments asserting that it lacked notice of the hazardous condition or ... that Plaintiff was responsible for creating said condition[.]" and (2) "Adverse Jury Instruction: In the event the case advance to trial, the [j]ury is permitted to infer that the destroyed surveillance footage would have been unfavorable to Defendant." (Macksoud Decl., Exh. B.)

Subsequently, at 6:07 p.m. on

May 18, 2026, Plaintiff's counsel served the Notice of Ruling regarding the sanctions motion on Defendant's counsel, Kori N. Macksoud. (Macksoud Decl., Exh. C.) Within three minutes, Macksoud responded,

stating, "We never received notice of this motion[.]" and asked, "Who did you serve it upon?" (Macksoud Decl., ¶ 5, Exh.

C.) Within fifty minutes, Plaintiff's

counsel requested another staff member to "please send Kori the service email[.]"

while asserting that "[i]t was served on Kori and Alicia." (Macksoud Decl., ¶ 5, Exh. C.) However, Macksoud asserted that "[n]either of

us received it." (Macksoud Decl., Exh.

C.)

Plaintiff's counsel then forwarded

an email stating that it included electronic service of the motion dated March 12, 2026, at 2:02 p.m. (Macksoud Decl., ¶

5, Exh. C.) Plaintiff's counsel asserted, "We did not receive any kick back or undeliverable notice. Our email system advises us when emails are undelivered." (Macksoud Decl., Exh. C.) They also requested that Macksoud verify her emails from March 12, 2026. (Macksoud Decl., Exh. C.)

Upon receipt of the forwarded email, Macksoud "examined the proof of service filed with the motion and observed that it reflects a purported service date of March 5, 2026, rather than March 12, 2026. Based on the Los Angeles Superior Court 'CRS' filing rules and the March 12, 2026, filing date of the motion, the motion could not have been filed or existed in filed, serviceable form on March 5, 2026." (Macksoud Decl., ¶ 10, Exh. G.)

Alicia Gonzalez, Macksoud's litigation assistant, conducted an email search and confirmed the absence of any relevant emails from March 12, 2026; she included a screenshot of her inbox, junk email, archive, deleted items, recoverable items, all folders, and all mailboxes as evidence. (Macksoud Decl., ¶ 6, Exh. D; Declaration of Alicia Gonzalez ("Gonzalez Decl."), ¶¶ 1-2, 4, Exhs. I-J.) Macksoud conducted a similar search and provided comparable documentation. (Macksoud Decl., ¶ 11, Exh. C.)

That evening, Macksoud communicated with the IT Operations Supervisor and paralegal, Katrina Garcia, instructing her to contact their external IT provider, Afinity, to determine whether the March 12, 2026, email had been received by their firm's system. (Macksoud Decl., ¶ 8, Exh. F.)

The following day, Macksoud emailed Plaintiff's counsel, asserting, "Alicia and I have conducted a comprehensive search of our firm's email system for that date and for the March 12 email. We searched by date, sender and subject line and also reviewed our spam, junk, and clutter folders. Despite this, we have been unable to locate any record of the original March 12 email or any transmission of Plaintiff's motion in either my inbox or Alicia's inbox. The only instance we have of this message is the copy you just forwarded." (Macksoud Decl., Exh. C.) Macksoud also informed Plaintiff's counsel of Defendant's intention to file a motion for relief. (Macksoud Decl., Exh. C.)

On March 20, 2026, Afinity

confirmed: "You are correct that it is not in either users mailbox, but it has been too long to find out what happened. The quarantine in O365 is only 30 days and Mimecast only has 30 days' worth of logs. And according to extended message tracking it looks like I misread the report. It never got to exchange so it more than likely got blocked in Mimecast or was just never received by Mimecast. Sorry I saw the email, but it was from Monday not March."

(Macksoud Decl., Exh. F.) Garcia

subsequently forwarded this information to Macksoud and Gonzalez. (Macksoud Decl., ¶ 8, Exh. F.)

On the same day, Macksoud

communicated her findings to Plaintiff's counsel. (Macksoud Decl., ¶ 12, Exh. H.) Plaintiff's counsel did not provide a response to this email. (Macksoud Decl.,

¶ 12, Exh. H.)

LEGAL STANDARDS

Pursuant to Code of Civil Procedure section 473, subdivision (b), discretionary and mandatory relief are available to parties from a judgment, dismissal, order, or other proceeding.

Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

Alternatively, mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) Under this statute, an application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (Code Civ.

Proc., § 473, subd. (b); English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 143.) “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court[.] [Citation.]” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) “Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.)

DISCUSSION

Defendant moves to vacate the Court's order dated May 18, 2026, which granted Plaintiff's Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction Against Defendant the Vons Companies, Inc. for the Destruction of Video Surveillance Evidence. (Notice of Motion, pp. 1:26-2:3; Macksoud Decl., Exh. B.) Defendant seeks to vacate the order on the following grounds: (1) the proof of service associated with Plaintiff's sanctions motion is facially defective; (2) the email transmission dated March 12, 2026, which purportedly served the sanctions motion, was not received by Defendant's counsel or her assistant, rendering the order voidable or void due to lack of service; (3) the order infringes upon Defendant's due process rights; and (4) relief is warranted under Code of Civil Procedure section 473, subdivision (b), due to surprise and excusable neglect. (Notice of Motion, pp. 2:11-3:27.)

“Section 473 empowers a trial court to set aside any judgment or order that is void as a matter of law, for example, because the court lacked subject matter jurisdiction, or because the summons and complaint were not properly served, so that the court lacked personal jurisdiction over a defendant, or otherwise because the judgment or order violated a party's due process rights to notice and an opportunity to be heard. (§ 473, subd. (d); see Reid v. Balter (1993) 14 Cal.App.4th 1186, 1194, 18 Cal.Rptr.2d 287 [dismissal

order entered without notice and opportunity to be heard was void and subject to being set aside pursuant to section 473[.]”
(Brown v. Williams (2000) 78 Cal.App.4th 182, 186, fn. 4.)

Code of Civil Procedure

section 1005, subdivision (b), mandates that written notice must be provided to all parties prior to a court hearing on any motion. This requirement ensures that the opposing party is afforded a reasonable opportunity to respond. In the absence of adequate notice or an opportunity to be heard, an order constitutes “a clear violation of [the opposing party’s] due process rights[.]”
(Reid v. Balter (1993) 14 Cal.App.4th 1186, 1193.) “An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action [or motion] and afford them an opportunity to present their objections.”
(Mullane v. Central Hanover Bank & Trust Co. (1992) 339 U.S. 306, 314.)

In this matter, Defendant was
not informed of Plaintiff’s sanctions motion until 6:07 p.m. on May 18, 2026, when Plaintiff’s counsel served the Notice of Ruling on Defendant’s counsel, Kori N. Macksoud. (Macksoud Decl., Exh. C.) Within three minutes, Macksoud responded, stating, “We never received notice of this motion[.]” and asked, “Who did you serve it upon?” (Macksoud Decl., ¶ 5, Exh. C.) Within fifty minutes, Plaintiff’s counsel requested another staff member to “please send Kori the service email[.]” while asserting that “[i]t was served on Kori and Alicia.” (Macksoud Decl., ¶ 5, Exh. C.) However, Macksoud asserted that “[n]either of us received it.” (Macksoud Decl., Exh. C.)

Subsequently, Plaintiff’s
counsel then forwarded an email stating that it included electronic service of the motion dated March 12, 2026, at 2:02 p.m.
(Macksoud Decl., ¶ 5, Exh. C.) Upon receipt of the forwarded email, Macksoud “examined the proof of service filed with the motion and observed that it reflects a purported service date of March 5, 2026, rather than March 12, 2026.”
(Macksoud Decl., ¶¶ 5, 10, Exhs. C, G.)

Thus, considering Plaintiff's counsel's admission, the proof of service contains an incorrect service date.

Alicia Gonzalez, Macksoud's litigation assistant, conducted an email search and confirmed the absence of any relevant emails from March 12, 2026; she included a screenshot of her inbox, junk email, archive, deleted items, recoverable items, all folders, and all mailboxes as evidence. (Macksoud Decl., ¶ 6, Exh. D; Gonzalez Decl., ¶¶ 1-2, 4, Exhs. I-J.) Macksoud conducted a similar search and provided comparable documentation. (Macksoud Decl., ¶ 11, Exh. C.)

On March 20, 2026, Afinety, Macksoud's external IT provider, confirmed: "You are correct that it is not in either users mailbox, but it has been too long to find out what happened. The quarantine in O365 is only 30 days and Mimecast only has 30 days' worth of logs. And according to extended message tracking it looks like I misread the report. It never got to exchange so it more than likely got blocked in Mimecast or was just never received by Mimecast. Sorry I saw the email, but it was from Monday not March." (Macksoud Decl., Exh. F.)

This evidence overwhelmingly demonstrates that Defendant did not receive notice of the motion and, therefore, was denied the opportunity to be heard. It appears that Plaintiff either did not send the motion or that Defendant's counsel did not receive it due to their email security system. Notably, Plaintiff's conditional non-opposition brief does not contest any of the evidence presented.

Accordingly, the Defendant's motion to vacate the order is GRANTED.

Request for Expedited Briefing Schedule

However, in Plaintiff's conditional non-opposition brief, they request that "if the Court grants Defendant's motion to set aside the May 18, 2026, order, the Court simultaneously set an expedited briefing and hearing schedule on Plaintiff's underlying Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction. Plaintiff requests that the underlying

sanctions motion be heard as soon as the Court can accommodate, and preferably on or before July 23, 2026.” (Cond. Non-Opp., p. 2:7-11.) Defendant does not oppose this request in its reply. (Reply, pp. 3:24-4:20.) However, this request is not feasible for the Court’s calendar. Instead, the Plaintiff’s underlying Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction is reset to August 7, 2026, at 1:30pm.

ORDERS

1) Defendant the Vons Companies, Inc.’s Motion to Vacate and Set Aside May 18, 2026, Order Granting Plaintiff Julie Kessler’s Motion for Evidentiary Sanctions and Adverse Jury Instruction is GRANTED.

2) Plaintiff’s Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction Against Defendant the Vons Companies, Inc. for the Destruction of Video Surveillance Evidence, is reset for August 7, 2026, at 1:30pm.

3) Defendant’s opposition brief is due on or before July 27, 2026, and Plaintiff’s reply brief is due on or before August 3, 2026.

4) Defendant is ordered to give notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: July 13, 2026

Tamara
Hall

Judge
of the Superior Court